

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR
Plaintiff,

Case No.: 2019-CC-562

v.

JEREMY HOENE, GEORGIA CONAWAY
and ANY UNKNOWN TENANT(s),
Defendants.

**MOTION FOR FINAL DEFAULT JUDGMENT FOR DAMAGES
AND JUDICIAL SALE**

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MOBILE MANOR, by and through the undersigned counsel, moves this Court to grant a final default judgment against Defendant(s), JEREMY HOENE, GEORGIA CONAWAY and ANY UNKNOWN TENANT(s), in the above-styled cause and Plaintiff alleges the following facts:

1. Plaintiff brought an action against the Defendant(s), JEREMY HOENE, GEORGIA CONAWAY and ANY UNKNOWN TENANT(s).
2. Plaintiff served the Defendant(s), JEREMY HOENE, GEORGIA CONAWAY and ANY UNKNOWN TENANT(s) on January 28, 2019.
3. Defendant GEORGIA CONAWAY filed an answer to the Complaint on January 22, 2019.

4. Plaintiff filed a motion for judgment for possession which was granted on March 18, 2019.

5. The Defendants failed to pay any monies into the Registry of the Court.

6. As a result of the Writ of Possession, the Plaintiff came to be in possession of the premises of Defendants on April 1, 2019.

7. By virtue of the Defendants having failed to pay rent into the Registry of the Court pursuant to the Court's Order, pursuant to Fla. Stat. §723.063(2), Defendants are in default as to the elements of the Plaintiff's complaint. "The failure of the mobile home owner to pay the rent, or portion thereof, into the registry of the court as required herein constitutes an absolute waiver of the mobile home owner's defenses other than payment, and the park owner is entitled to an immediate default."

8. Plaintiff is entitled to a judgment against Defendant(s) for damages arising out of the mobile home residential lot rental agreement and Florida Statute Section 723.061 for failure to pay rent, maintenance expenses, late fees, court costs and reasonable attorney fees arising out of the bringing of this action.

9. Pursuant to the Affidavit of Indebtedness of Plaintiff's Residential Manager, incorporated into this Motion and attached as Exhibit A, Defendant is indebted to Plaintiff in the sum of \$ _____.

10. Pursuant to Fla. Statutes §713.691 Plaintiff is entitled to a lien against Defendants' personal property on Lot #138 in the possession of the Plaintiff, including the mobile home identified below.

11. By virtue of the Writ of Possession issued and served upon the Defendant(s) on March 28, 2019, Plaintiff came to be in possession of personal property belonging to the Defendant, namely a *1980 Nobility Homes, Inc mobile home VIN No. N22077A Title no. 0017583393 and VIN No N22077B, Title No. 0017562794*, which is located on Lot #138 of COLONIAL MOBILE MANOR, with the street address of 900 9th Avenue East, Palmetto, Florida, 34221 lot 138, of the property leased by the Plaintiff to Defendant(s), JEREMY HOENE , GEORGIA CONOWAY and ANY UNKNOWN TENANT(s).

13. Pursuant to Fla. Stat. § 45.031 Plaintiff is entitled to a judicial sale of the mobile home to satisfy its judgment for damages against Defendants.

14. Pursuant to Fla. Statutes § 723.068 Plaintiff is entitled to an award of attorney's fees by virtue of prevailing in an action to enforce rights arising out of a mobile home lot rental agreement. Plaintiff attaches an Affidavit of Attorney's Fees, as Exhibit B, and seeks an award of \$1,500.00.

15. Plaintiff being entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's Judgment against the Defendants, JEREMY HOENE, GEORGIA CONAWAY and ANY UNKNOWN TENANT(s) it has perfected its landlord lien against the personal property of Defendants, namely the mobile home identified as a *1980 Nobility Homes, Inc mobile home VIN No. N22077A Title no. 0017583393 and VIN No N22077B, Title No. 0017562794* which is located on Lot 138 of the property leased to the Defendants.

16. The Plaintiff is entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's Judgment against the Defendant(s), JEREMY HOENE, GEORGIA CONAWAY and ANY UNKNOWN TENANT(s), all costs of this proceeding and reasonable attorney's fees. An Affidavit of Attorney Fees itemizing attorney fees in the amount of \$1650.00 is

incorporated into this Motion and attached as Exhibit B and an Affidavit of Costs in the amount of \$726.08 is incorporated into this Complaint and attached as Exhibit C.

WHEREFORE, the Plaintiff prays this Honorable Court to enter a judgment against the Defendants for damages as identified herein, to declare that the Plaintiff is entitled to a lien against the personal property of the Defendants in the possession of the Plaintiff, and to grant Plaintiff an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's Judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee, and for any such further relief as the interests of justice require.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Final Default Judgement for Damages and Judicial Sale has been furnished by U.S. Mail in accordance with Florida Rule of Judicial Administration 2.516 to, ~~Jeremy Hoene and any unknown tenant at~~ at their last known address of 900 9th Avenue East, Lot #138, Palmetto, Florida, 34221 and to Georgia Conaway, 3302 Logue Avenue, Myakka, FL 34251 on this 30th day of April, 2019.

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